

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 18
JUDICIAL OFFICER: DANIELLE K DOUGLAS
HEARING DATE: 12/12/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued.

Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D18. Zoom is approved for all hearings except Issue Conferences and Trials. **Dept. 18's telephone number is: (925) 608-1118.**

NOTE: In order to minimize the risk of miscommunication, Dept. 18 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 18's email address is: dept18@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 18 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C23-01843

CASE NAME: ALI KHAN VS. X-THERMA INC.

HEARING ON SUMMARY MOTION ADJUDICATION

FILED BY: KHAN, ALI ZIA

TENTATIVE RULING:

Before the Court is Plaintiff Ali Khan ("Plaintiff" or "Khan")'s motion for summary adjudication. The motion relates to Plaintiff's Complaint for Breach of Contract as well as Defendant X-Therma, Inc. ("Defendant" or "X-Therma")'s Cross-Complaint for (1) constructive eviction, (2) breach of lease, (3) breach of implied covenant of good faith & fair dealing, (4) declaratory relief, (5) private nuisance, (6)

premises liability, (7) unfair business practices in violation of Bus. & Prof. Code § 17200 et seq., (8) enforcement of unilateral rescission of the lease, (9) fraud (active concealment), and (10) negligent misrepresentation.

As a threshold issue, the motion purports to move “for an order of summary adjudication for all the causes of action stated in the Defendant’s cross-complaint and all the affirmative defenses stated by Defendant to the cause of action for breach of contract stated in Plaintiff’s complaint” as well as “an order of summary adjudication entered in favor of the Plaintiff’s cause of action for Defendant’s breach of contract[.]” (Notice at 1:23-28.)

“A party may move for summary judgment *in an action* or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding,” or “a party may move for summary adjudication as to one or more causes of action *within an action*.” (Code Civ. Proc., § 437c, subds. (a)(1) & (f)(1), emphasis added.) These references to “an action” in the summary judgment statute are singular references. The word “action” is defined as “an ordinary proceeding in a court of justice by which one party prosecutes another [...]” (Code Civ. Proc., § 22, emphasis added.)

The Complaint and the Cross-Complaint are legally two separate actions. “Where there are both a complaint and a cross-complaint there are actually two separate actions pending and the issues joined on the cross-complaint are completely severable from the issues under the original complaint and answer. [Citations.]’ [Citation omitted.]’ “Where a cross-complaint is filed there are two simultaneous actions pending between the parties wherein each is at the same time both a plaintiff and a defendant.” [Citation.]’ [Citations omitted.]” (*Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109, 134.)

No authority, of which this Court is aware, permits a party to move for summary adjudication of causes of action in a complaint as well as summary adjudication of claims made in a cross-complaint in a single motion under Code of Civil Procedure section 437c. Nevertheless, Defendant and Cross-Complainant did not file an opposition or objection, and so the Court will address the motion for summary adjudication on the Complaint and the Cross-Complaint on the merits.

For the following reasons, the motion is **granted**.

Request for Judicial Notice

Plaintiff’s unopposed request for judicial notice is **granted**. (Evid. Code § 452(d).)

Legal Standard

A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(1).)

However, “[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.” (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The Court notes that California law does not require a moving Plaintiff to negate a Defendant’s affirmative defenses to satisfy its initial burden. (See *Aguilar, supra*, 25 Cal.4th at p. 853 [‘summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action.... All that the plaintiff need do is to “prove[] each element of the cause of action” ’].)

Analysis

This case arises out of a commercial lease agreement between Plaintiff, owner of an industrial real estate property in Richmond, and Defendant, a California corporation.

Plaintiff’s Complaint for Breach of Contract

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

The undisputed facts show that (1) Plaintiff and Defendant executed a lease on February 18, 2023 (UMF 2), (2) pursuant to paragraph 2.2 of the Lease Agreement, Plaintiff warranted the Premises to be free from mold or fungi for a period of thirty days after commencement of the lease and Defendant did not report mold on the premises until fifteen months later (UMF 6), (3) on June 15, 2023.

Defendant stopped paying rent to Plaintiff as required by the Lease Agreement (UMF 9), and it will require \$288,000 for Plaintiff to remediate the property due to Defendant’s modifications.

Defendant has not filed an opposition or otherwise responded to the motion. Thus, Defendant has waived any arguments regarding this motion. (See *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also *Wright v. Fireman’s Fund Ins. Companies* (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].)

Therefore, the court will **grant** the motion as Plaintiff’s cause of action for breach of contract.

Defendant’s Cross-Complaint

As to each claim as framed by the cross-complaint, the cross-defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519–1520.) Once the cross-defendant has met that burden, the burden shifts to the cross-complainant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th

151, 163.)

(1) constructive eviction

The necessary elements for constructive eviction are: (1) a landlord's acts/omissions or disturbance/interference with her tenants' possession of leased premises; and (2) that said landlord's conduct caused either a substantial portion of the premises to be unfit for the purposes for which it was leased or the tenants to be deprived of the beneficial enjoyment or use of the premises for a substantial time. (*Groh v. Kover's Bull Pen, Inc.* (1963) 221 Cal.App.2d 611, 614.)

The Cross-Complaint alleges that "[t]he Property was and remains in a hazardous condition due to the presence of excessive levels of black mold, which interfered with X-Therma and its employees from safely occupying and conducting its business as a regulated FDA manufacturer at the Premises for operation of a laboratory." (XC at ¶ 28.)

The undisputed facts show that Defendant did not report the presence of mold until 15 months after the Start Date of the lease. (UMF 2, 8.) Under paragraph 7.1 of the lease, the Defendant became responsible for the remediation of mold or fungi on the premises thirty days after commencement of the lease. (UMF 7.) As a consequence, the presence of black mold cannot support Defendant's cause of action for constructive eviction.

Plaintiff is entitled to summary adjudication of Defendant's constructive eviction claim.

(2) breach of lease

Cross-Complainant's breach of lease claim is based on the same contract as is Plaintiff's breach of contract claim. The Cross-Complaint alleges that "Khan breached the Lease Agreement, by failing to deliver the Premises in a reasonably safe condition, free of hazardous levels of toxic black mold and fungi and other defective conditions." (XC at ¶ 33.)

For the same reasons as discussed supra, Plaintiff is entitled to summary adjudication of Defendant's breach of lease claim.

(3) breach of implied covenant of good faith & fair dealing

To prevail on a claim for breach of the implied covenant of good faith and fair dealing, the Cross-Complainant must first establish "the existence of a contractual relationship between the parties, since the covenant is an implied term in the contract." (*Smith v. City and County of San Francisco* (1990) 225 Cal.App.3d 38, 49.) Secondly, benefits due under the contract must have been withheld, and "the reason for withholding benefits must have been unreasonable or without proper cause" (*Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136, 1151.) Under traditional contract principles, the implied covenant of good faith is read into contracts "in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract's purpose." (*Carma Developers (Cal.), Inc. v. Marathon Development California, Inc.* (1992) 2 Cal.4th 342, 373.)

The Cross-Complaint alleges that "Khan breached this covenant by engaging in acts complained of in this Cross-Complaint and failing and continuing to fail to remediate the issues, including but not limited to the black mold." (XC at ¶ 39.) However, Plaintiff has adduced evidence that he had no reason to believe that black mold ever existed in or on the Premises before May 12, 2023 (UMF 4) and that pursuant to the lease, Defendant became solely responsible for the remediation of mold or fungi on the premises thirty days after commencement of the lease. (UMF 7.)

Plaintiff is entitled to summary adjudication of Defendant's breach of implied covenant claim.

(4) declaratory relief

California Courts have recognized that "[t]he existence of an 'actual controversy relating to the legal rights and duties of the respective parties,' suffices to maintain an action for declaratory relief." (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605.) "Any person interested under a written instrument,... or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract." (*Id.* [quoting Code Civ. Proc, § 1060].)

As discussed *infra*, the Court grants Plaintiff's motion with respect to all of the causes of action of the Cross-Complaint. Thus, an actual controversy sufficient to sustain a declaratory judgment cause of action does not exist.

Plaintiff is entitled to summary adjudication of Defendant's declaratory relief claim.

(5) private nuisance

Section 731 of the Code of Civil Procedure governs who may bring an action for nuisance. It provides: "An action may be brought by any person whose property is injuriously affected, or whose personal enjoyment is lessened by a nuisance, as defined in Section 3479 of the Civil Code, and by the judgment in that action the nuisance may be enjoined or abated as well as damages recovered therefor." (Code Civ. Proc., § 731.)

Here, Defendant's private nuisance claim is premised on the presence of black mold at the property. However, as the undisputed material facts establish, Defendant did not report the presence of mold for 15 months after the start date of the lease and after Defendant performed extensive modifications to the property, and that under the lease Defendant was solely responsible for remediating the presence of black mold. (UMF 3, 5, 6, and 9.)

As a consequence, Plaintiff is entitled to summary adjudication of Defendant's private nuisance claim.

(6) premises liability

For the same reasons as discussed with respect to Defendant's private nuisance claim, Plaintiff is entitled to summary adjudication of Defendant's premises liability claim, which is also premised on the presence of black mold.

(7) unfair business practices in violation of Bus. & Prof. Code § 17200 et seq.

Plaintiff moves for summary adjudication of Defendant's 17200 claim on the grounds that Defendant does not spell out the elements of the business tort for the "borrowed" action in his UCL claim.

"[S]ection 17200 'borrows' violations of other laws and treats them as unlawful practices" that the unfair competition law makes independently actionable. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.)

As pled, Defendant's Cross-Complaint is unclear as to the predicate violation upon which it relies for its 17200 claim. It alleges only "[t]he various breaches of duty committed by Khan as described herein constitute unlawful, unfair, and/or fraudulent business practices in violation of the UCL." (XC at ¶ 63.) Even assuming *arguendo* that Defendant's causes of action for breach of contract or fraud are

intended to serve as a predicate for the 17200 claim, Plaintiff has established that he is entitled to summary adjudication on those claims, as discussed herein.

Plaintiff is entitled to summary adjudication of Defendant's 17200 claim.

(8) enforcement of unilateral rescission of the lease

Plaintiff moves for summary adjudication of Defendant's cause of action for rescission on the same grounds as breach of lease. Because the Court has already determined that Plaintiff performed under the contract, Defendant cannot establish a cause of action for rescission. Plaintiff is entitled to summary adjudication on Defendant's cause of action for rescission.

(9) fraud (active concealment)

Plaintiff moves for summary adjudication on Defendant's cause of action for fraud on the grounds that it lacks the requisite specificity.

The elements of a fraudulent concealment cause of action are: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4 858, 868.)

Defendant's Cross-Complaint alleges that (1) "Khan concealed the fact that the Property had black mold in it" (XC at ¶ 71); (2) that "[t]he existence of the black mold at the Property was known by Kahn because he was obligated by a commercial landowner to inspect the Property before the Lease was executed to make the premises reasonably safe from dangerous conditions" (XC at ¶ 72); (3, 4) that "at the time X-Therma executed the Lease, Khan concealed this information with the intent that X-Therma rely ignorant of the true facts" (XC at ¶ 74); and (5) that "X-Therma has been damaged in an amount exceeding \$700,000, which amount will be proven at trial." (XC at ¶ 75.)

These allegations are insufficient to state a cause of action for concealment; both Plaintiff's intent and Defendant's reliance are inadequately alleged. Plaintiff is entitled to summary adjudication on Defendant's claim for fraud (active concealment).

(10) negligent misrepresentation

Plaintiff also moves for summary adjudication on Defendant's claim for negligent misrepresentation on the grounds that it lacks the requisite specificity.

The elements of negligent misrepresentation are "(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage." (*Apollo Capital Fund LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.) While there is some conflict in the case law discussing the precise degree of particularity required in the pleading of a claim for negligent misrepresentation, there is a consensus that the causal elements, particularly the allegations of reliance, must be specifically pleaded. (*E.g., Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184; *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519.)

Defendant's Cross-Complaint alleges that (1) Khan represented to X-Therma that the Property contained no black mold issues (XC at ¶ 78); (2) those representations were false, Khan should have

known they were false, and had no reasonable grounds for believing them to be true when made (XC at ¶ 80); (3) that Khan intended that X-Therma rely on his representations (XC at ¶ 81); (4) that Khan's misrepresentations were a substantial factor in X-Therma's decision to enter the Lease with Khan (XC at ¶ 83); and (5) that as a direct and proximate result of the conduct and actions committed by Khan, X-Therma has been damaged in an amount exceeding \$700,000 (XC at ¶ 84).

The Cross-Complaint is bereft of allegations as to how Plaintiff knew or should have known of a mold problem on the Premises and how he concealed this from Defendant. The allegations of the Cross-Complaint are cursory at best. Plaintiff is entitled to summary adjudication on Defendant's negligent misrepresentation claim.

2. 9:00 AM CASE NUMBER: C23-03214

CASE NAME: ROBERT BRADFORD VS. KEITH STONE

***HEARING ON MOTION IN RE: LIMITED OPPOSITION TO DISCOVERY ORDER NO. 3**

FILED BY: K. B. STONE DIAMOND CORPORATION

TENTATIVE RULING:

Granted. Plaintiffs are not permitted to seek discovery into unrelated business entities and personal financial matters of the Stones, other than the flow of money between Defendants K.B. Stone Diamond Corporation and Happy Valley Estates, LLC to the Stones. The order is made without prejudice if discovery reveals cash flowing between one of the relevant entities and an unrelated business entity and/or personal finances.

3. 9:00 AM CASE NUMBER: C24-03509

CASE NAME: AJ JACKSON VS. ANTIOCH UNIFIED SCHOOL DISTRICT

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT

TENTATIVE RULING:

Defendant Antioch Unified School District's Demurrer to Plaintiff AJ Jackson's Complaint is **sustained with leave to amend**. Defendant shall prepare and submit a proposed order and serve notice of entry of the order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

Background

Plaintiff AJ Jackson, a minor, alleges that on January 1, 2024, while attending Carmen Dragon Elementary, he was physically assaulted by other students. (Complaint, ¶ 3.) Plaintiff alleges he was under the custody, control, and care of District employees at the time and that those employees "failed [to] take appropriate action" in supervising and protecting him. (*Id.* ¶ 13.) Plaintiff seeks to hold the District vicariously liable the negligence of its employees pursuant to Government Code section 815.2. (*Id.* ¶¶ 14-18.)

Plaintiff alleges that a government claim "was served on Antioch Unified School District pursuant to Government Code section 911.2 and has not been rejected." (*Id.* ¶¶ 8-9.)